

See also: The US Constitution and Bill of Rights 110–117 ■ The Declaration of the Rights of Man 118–119 ■ The US Supreme Court and judicial review 124–129 ■ *Miranda v. Arizona* 254–255

The Kansas City police department, some of its members shown here in around 1900, was assiduous in pursuing criminals, but it did not always follow the rule of law.

by law enforcement officers—on the second occasion by a US marshal. On both occasions, no search warrants were issued.

Weeks's constitutional right under the Fourth Amendment “to be secure” had been violated, so the evidence gathered was “excluded” from use in court, meaning it was ruled inadmissible. This principle was known as the exclusionary rule.

Clear parallels existed with later Supreme Court rulings that found constitutional rights had been violated, most obviously in *Miranda v. Arizona* in 1966. In this case, rape and kidnapping convictions were overturned because the accused's constitutional rights—to remain silent and avoid self-incrimination (Fifth Amendment) and to legal counsel (Sixth)—had been ignored.

The exclusionary rule has always been controversial. The obvious criticism was that the guilty might



go unpunished—there was no question that Weeks was guilty. Defenders of the ruling said that, without the exclusionary rule, the Constitution itself was violated. More practically, it was in the wider interests of American justice to use the rule to hold law officers to the highest standards of evidence.

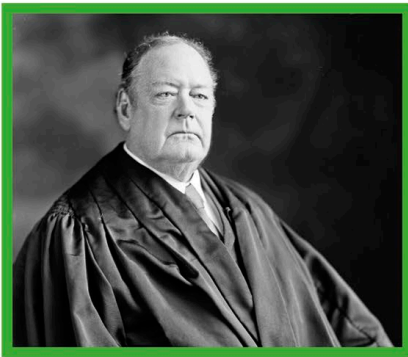
Exceptions to the rule

Later Supreme Court judgments have tended to water down strict interpretations of the exclusionary rule. For example, in *United States v. Leon*, a drug-trafficking case, the police conducted a search with a warrant later found to be invalid. The 1984 ruling maintained that the exclusionary rule did not apply, because evidence obtained by police “in good faith” with the search warrant was admissible; it also held that the “substantial social costs” of the guilty going free could be disproportionate.

An oddity of the exclusionary rule was that it applied only in federal cases. In *Wolf v. Colorado*, in 1949, the Supreme Court upheld

convictions by Colorado State, because it was up to state courts to decide whether or not they would implement the exclusionary rule in criminal cases.

It was only in the 1961 *Mapp v. Ohio* case, concerning a conviction of possession of obscene materials, that the exclusionary rule became mandatory in all US courts. The precedent cited was the Fourteenth Amendment, which guaranteed the right to “due process of law.” ■



Edward Douglass White was chief justice of the eponymous White Court, the US Supreme Court that in 1914 in *Weeks v. United States* unanimously agreed on the exclusionary rule.

“The criminal goes free, if he must, but it is the law that sets him free.

Tom C. Clark
US Supreme Court justice
(1949–1967)

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